**Table 43.** Compliance checklist against the Bangladesh framework

| Area | Requirement (as reported) | BAPIL control | Evidence |
|---|---|---|---|
| Consent and lawful basis (PDPA 2026) | Explicit consent for collection and use of personal data | P0-first; consent records for P3 pilot data | Consent forms; DPIA |
| Data-subject rights (PDPA 2026) | Access, correction, deletion; restriction of automated decisions | No automated decisions on individuals; rights-request procedure | Procedure; request log |
| Sensitive and children's data (PDPA 2026) | Enhanced protection; restrictions on profiling minors | P3 data excluded by charter | Charter; data inventory |
| Data custody and exchange (NDMA 2026) | Custodian duties; approved data exchange | Data-sharing agreements; use of NRDEX where available | Signed agreements |
| Data residency (PDPA amendment, 2026) | Data-residency provisions changed by the 2026 amendment ordinance, reportedly limited to critical sectors such as banking and healthcare [69, 70] (scope and status under the Act to be confirmed) | All data above class P0 hosted in Bangladesh (NFR-02) | Hosting agreement |
| Source code (NDMA 2026) | National source code repository for government software (as described for the 2025 Ordinance) | Open-source code; mirror to national repository when available | Repository links |
| Security duties (Cyber Security Act 2026) | Protection of systems and data; incident handling | NIST CSF 2.0 controls; incident plan | Security reviews; drills |
| Harmful AI-generated content (reported 2026 amendment; to be confirmed) | Removal of harmful synthetic content, if enacted | No generation of synthetic media; research protocols for P6 | ERRC approvals |
| Proactive disclosure (RTI Act 2009) | Publication of public information | Open publications; transparency register | Published register |
| Draft national AI policy | Risk categories; impact assessment; oversight | Tier system aligned; impact assessments for T2 and T3 | Assessments; register |

*Requirements summarise press reports and secondary legal commentary [6, 7, 8, 9, 10, 39, 69, 90]. Which provisions are in force, and from when, has not been confirmed. The legal review (Section 14.3) checks each line against the gazetted texts; until then BAPIL applies the stricter reading.*

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